

25CV05164 Martyn Pickering vs John Stump et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-28

Motion: CMC; Motion Compel; Motion Order - Admissions

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Tentative Ruling: Martyn Pickering vs John Stump et al

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Fri, 08/28/2026 - 10:00

Nature of Proceedings

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Tentative Ruling

On August 20, 2025, plaintiff Martyn Pickering filed his original complaint in this action against defendants John Stump and Stumpco, Inc. (Stumpco), asserting one cause of action for fraud. On September 17, 2025, a proof of service by mail was filed showing service by mail on defendant Stump, individually and on behalf of Stumpco. On March 20, 2026, a proof of service was filed showing personal service on defendant Stump on March 10, 2026. Neither Stump nor Stumpco has appeared in this action.

On April 10, 2026, plaintiff served special interrogatories, set one, and request for admissions, set one, on defendant Stumpco. (Pickering decl. re interrogatories, ¶ 2; Pickering decl. re requests for admissions, ¶ 2.)

"A plaintiff may propound interrogatories to a party without leave of court at any time that is 10 days after the service of the summons on, or appearance by, that party, whichever occurs first." (Code Civ. Proc., § 2030.020, subd. (b).)

"A plaintiff may make requests for admission by a party without leave of court at any time that is 10 days after the service of the summons on, or appearance by, that party, whichever occurs first." (Code Civ. Proc., § 2033.020, subd. (b).)

Service by mail on a corporation is not effective service of a summons and complaint. (Code Civ. Proc., § 416.10.) The proof of personal service as to defendant Stump shows that service is only as to Stump an individual defendant. Because Stumpco has not been effectively served with the summons, plaintiff's service of the discovery that is the subject of these motions by mail is both ineffective and premature. The motions are therefore denied.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

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